

UNION AND TERRITORY

ARTICLES 1-4: THE TERRITORIAL — ARTICLE 3 PROCEDURE: CONSULTATION — ARTICLE 2, ARTICLE 3 — FIRST SCHEDULE AS A — INTEGRATION AND LINGUISTIC REORGANISATION — POST-1956 MAP-MAKING: REORGANISATION, CREATION

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g14 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00ARTICLES 1-4: THE TERRITORIAL POWER HIERARCHY

ARTICLES 1-4THE TERRITORIAL POWER HIERARCHYARTICLE 1INDIA, THAT IS BHARATUNION OF STATES TERRITORYSTATES + UNION TERRITORIES + ACQUIRED TERRITORIESARTICLE 2PARLIAMENT ADMITS INTO UNION OR ESTABLISHES NEW STATES

ARTICLE 1

India, that is Bharat = Union of States territory = States + Union territories +

ARTICLE 2

Parliament admits into Union or establishes new States

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 1
- India, that is Bharat = Union of States territory = States + Union territories + acquired territories
- ARTICLE 2

POWER / PROCEDURE

- Parliament admits into Union or establishes new States
- ARTICLE 3
- Parliament forms new States and alters area, boundary or name

CHECK / LIMIT

- ARTICLE 4 consequential First/Fourth Schedule changes and supplemental provisions laws under Articles 2 and 3 are not amendments under Article 368
- FIRST SCHEDULE = living ledger of States and Union territories
- PRINCIPLE: States have constitutional status, but no right to secede.

FEDERAL / RIGHTS IMPACT

- Parliament admits into Union or establishes new States

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The framers wanted the Constitution to show that India is federal in structure, but not the product of a treaty among pre-existing sovereign units.

01

STAGE 01ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT A STATE VETO

ARTICLE 3 PROCEDURECONSULTATION WITHOUT A STATE VETOPRESIDENT'S RECOMMENDATION REQUIREDBILL AFFECTS AREA, BOUNDARY OR NAME OF A STATE?PRESIDENT REFERS BILL TO AFFECTED STATE LEGISLATURE+--- SPECIFIES TIME FOR EXPRESSING VIEWS+--- MAY EXTEND THAT TIME

+--- PARLIAMENT IS NOT BOUND BY THOSE VIEWS

PRESIDENT'S RECOMMENDATION REQUIRED

BILL affects area, boundary or name of a State?

YES — President refers bill to affected State legislature

+--- specifies time for expressing views

+--- may extend that time

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT'S RECOMMENDATION REQUIRED
- BILL affects area, boundary or name of a State?
- YES — President refers bill to affected State legislature

POWER / PROCEDURE

- +--- specifies time for expressing views
- +--- may extend that time
- +--- Parliament is not bound by those views

CHECK / LIMIT

- NO State affected — proviso referral does not arise in that form
- PARLIAMENT passes by ordinary legislative majority
- PRESIDENTIAL ASSENT — territorial and Schedule changes

FEDERAL / RIGHTS IMPACT

- State view is required consultation, not consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 requires presidential recommendation and State consultation, but Parliament is not bound by the State's view and Union Territories lack an equivalent proviso right.

02

STAGE 02ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCTQUESTION CONSTITUTIONAL ROUTE ADMIT OR ESTABLISH NEW STATE ARTICLEBERUBARI UNION (1960) CESSION OF INDIAN TERRITORY CANNOT BEMAGANBHAI ISHWARBHAI PATEL (1969) BOUNDARY SETTLEMENT DIFFERS FROM CESSION

100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY

CONSTITUTIONAL BASIS / ARTICLE

- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign
- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

POWER / PROCEDURE

- BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.
- MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

CHECK / LIMIT

- 100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange.
- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign

FEDERAL / RIGHTS IMPACT

- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession
- BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 2 admits or establishes new States, whereas Article 3 reorganises existing Indian territory, making the powers related but not interchangeable.

03

STAGE 03FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGERTERRITORIAL LAW UNDER ARTICLE 2 OR 3 CHANGES FIRSTSTATE AND UNION-TERRITORY DESCRIPTION MAY CHANGE FOURTH SCHEDULERAJYA SABHA SEAT ALLOCATION MAY INCLUDE SUPPLEMENTAL, INCIDENTAL AND

ARTICLE 4 DECLARATION SUCH LAW IS NOT DEEMED ANORDINARY LEGISLATIVE ROUTEARTICLE 4 SUPPORTS TERRITORIAL REORGANISATIONIT DOES NOT BYPASS ARTICLE 368 FOR UNRELATED CONSTITUTIONAL

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may

Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment

ORDINARY LEGISLATIVE ROUTE

Article 4 supports territorial reorganisation

CONSTITUTIONAL BASIS / ARTICLE

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

POWER / PROCEDURE

- ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment
- ORDINARY LEGISLATIVE ROUTE

CHECK / LIMIT

- Article 4 supports territorial reorganisation
- it does not bypass Article 368 for unrelated constitutional changes.

FEDERAL / RIGHTS IMPACT

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 4 simplifies internal territorial change through incidental provisions, but cannot authorise cession of Indian territory to a foreign sovereign.

04

STAGE 04INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-19561947-49 ACCESSION AND INTEGRATION OF PRINCELY STATES1950 PART A, B, C AND D CLASSIFICATION BEGINS1948 DHAR COMMISSION CAUTIONS AGAINST LANGUAGE-ONLY REORGANISATION

1949 JVP COMMITTEE POSTPONES LINGUISTIC REORGANISATION1952 POTTI SRIRAMULU'S DEATH INTENSIFIES ANDHRA DEMAND1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED1955 FAZL ALI COMMISSION REPORT

1947-49 accession and integration of princely states

1950 Part A, B, C and D classification begins

1948 Dhar Commission cautions against language-only reorganisation

1949 JVP Committee postpones linguistic reorganisation

1952 Potti Sriramulu's death intensifies Andhra demand

CONSTITUTIONAL BASIS / ARTICLE

- 1947-49 accession and integration of princely states
- 1950 Part A, B, C and D classification begins
- 1948 Dhar Commission cautions against language-only reorganisation

POWER / PROCEDURE

- 1949 JVP Committee postpones linguistic reorganisation
- 1952 Potti Sriramulu's death intensifies Andhra demand
- 1953 Andhra State formed; States Reorganisation Commission appointed

CHECK / LIMIT

- 1955 Fazl Ali Commission report
- 1956 States Reorganisation Act + Seventh Amendment language accepted with unity, administration and economy
- Part classifications abolished

FEDERAL / RIGHTS IMPACT

- States and Union territories reorganised
- Language became accommodation's basis, not an automatic sole test.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Hyderabad, Junagadh and Jammu and Kashmir are highlighted because their routes were politically difficult, not because the remaining integrations were legally or administratively uniform.

05

STAGE 05POST-1956 MAP-MAKING: REORGANISATION, CREATION AND RENAMING

POST-1956 MAP-MAKINGREORGANISATION, CREATION AND RENAMING1956 SETTLEMENT1960 MAHARASHTRA + GUJARAT1963 NAGALAND1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED1971 HIMACHAL PRADESH1972 MEGHALAYA, MANIPUR AND TRIPURA

1960 Maharashtra + Gujarat

1963 Nagaland

1966 Haryana + Chandigarh; Punjab reorganised

CONSTITUTIONAL BASIS / ARTICLE

- 1956 SETTLEMENT
- 1960 Maharashtra + Gujarat
- 1963 Nagaland
- 1966 Haryana + Chandigarh; Punjab reorganised

POWER / PROCEDURE

- 1971 Himachal Pradesh
- 1972 Meghalaya, Manipur and Tripura
- 1975 Sikkim becomes a State
- 1987 Mizoram, Arunachal Pradesh and Goa

CHECK / LIMIT

- 2000 Chhattisgarh, Uttarakhand and Jharkhand
- 2014 Telangana
- 2019 Jammu and Kashmir reorganised into two Union territories
- RENAMING uses Article 3 when a State name changes.

FEDERAL / RIGHTS IMPACT

- CURRENT MAP IN SOURCE: 28 States and 8 Union territories.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Maharashtra is not labelled the 15th State; Gujarat is conventionally counted as the 15th because the bilingual Bombay State was reorganised into the two successor States.

06

STAGE 06JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST2019 PRESIDENT'S RULE CONTEXTSTATE LEGISLATIVE POWERS EXERCISABLE BY PARLIAMENTJ&K REORGANISATION BILLARTICLE 3 ROUTE FORMER STATE DIVIDED INTOJAMMU AND KASHMIR UNION TERRITORY WITH LEGISLATURE

LADAKH UNION TERRITORY WITHOUT LEGISLATUREFIRST SCHEDULE AND REPRESENTATIONAL CONSEQUENCES

2019 PRESIDENT'S RULE CONTEXT

State legislative powers exercisable by Parliament

J&K REORGANISATION BILL

Article 3 route former State divided into

CONSTITUTIONAL BASIS / ARTICLE

- 2019 PRESIDENT'S RULE CONTEXT
- State legislative powers exercisable by Parliament
- J&K REORGANISATION BILL

POWER / PROCEDURE

- Article 3 route former State divided into
- Jammu and Kashmir Union territory with legislature
- Ladakh Union territory without legislature

CHECK / LIMIT

- FIRST SCHEDULE AND REPRESENTATIONAL CONSEQUENCES
- Does State-to-Union-territory conversion alter the federal bargain too deeply for ordinary Article 3 power?
- EXAM USE: separate procedural validity from political desirability.

FEDERAL / RIGHTS IMPACT

- Article 3 route former State divided into

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Jammu and Kashmir Reorganisation Act, 2019 took effect on 31 October 2019 and created the UT of Jammu and Kashmir with a legislature and the UT of Ladakh without one.

07

STAGE 07NEW-STATE DEMAND: DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

NEW-STATE DEMANDDEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNITCLAIM FOR NEW STATE IDENTITY + DISTANCE FROM CAPITALCONSTITUTIONAL RESPONSEARTICLE 3 REORGANISATION AFTER REQUIRED CONSULTATION

TESTS ADMINISTRATIVE VIABILITY FISCAL AND RESOURCE SUSTAINABILITY MINORITY PROTECTIONSMALLER CAN IMPROVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

CONSTITUTIONAL BASIS / ARTICLE

- CLAIM FOR NEW STATE Identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

POWER / PROCEDURE

- Article 3 reorganisation after required consultation
- TESTS administrative viability fiscal and resource sustainability minority protection inside proposed unit water, capital, assets, debt and employees

CHECK / LIMIT

- security and territorial integrity democratic legitimacy and transition costs
- Smaller can improve access; it does not automatically produce capacity or equality.

FEDERAL / RIGHTS IMPACT

- CLAIM FOR NEW STATE Identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Statehood can improve representation and focus, but without capacity and negotiated transition it can merely relocate conflict.

08

STAGE 08EXACT 10/15-MARK ARCHITECTURE: FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION

EXACT 10/15-MARK ARCHITECTUREFLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION10 MARKS150 WORDS1. OPEN WITH ARTICLE 1UNION OF STATES, NOT A SECESSION COMPACT.2. DISTINGUISH ARTICLES 2, 3 AND 4.3. WRITE ARTICLE 3 REFERRAL AND NON-BINDING STATE VIEW.

10 MARKS / 150 WORDS

1. Open with Article 1: Union of States, not a secession compact.

2. Distinguish Articles 2, 3 and 4.

3. Write Article 3 referral and non-binding State view.

4. Add Berubari Union (1960) cession limit.

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- 1. Open with Article 1: Union of States, not a secession compact.
- 2. Distinguish Articles 2, 3 and 4.
- 3. Write Article 3 referral and non-binding State view.

POWER / PROCEDURE

- 4. Add Berubari Union (1960) cession limit.
- 5. Conclude: flexible internal map, protected national territory.
- 15 MARKS / 250 WORDS
- 1. Map Articles 1-4 and First Schedule.

CHECK / LIMIT

- 2. Compare admission, reorganisation, acquisition and cession.
- 3. Trace integration — linguistic settlement — post-1956 creation.
- 4. Evaluate consultation without consent as strong-Union design.
- 5. Use J&K or a new-State demand as stress test.

FEDERAL / RIGHTS IMPACT

- 6. Balance identity, viability, consent and integrity.
- 7. Conclude: flexibility is a federal conflict-management device.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 is a centralising safety valve; its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

E

EXTRASUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTEXPLANATION I IS A FAVOURITE CLOSE-OPTION TRAP.IN ARTICLE 3, 'STATE' INCLUDES UNION TERRITORIES FOR CLAUSESTHIS IS WHY PARLIAMENT MAY RESTRUCTURE UTS WITHOUT ATHE FIRST SCHEDULE AND FOURTH SCHEDULE DO DIFFERENT JOBS.

THE FIRST SCHEDULE TRACKS TERRITORIAL UNITS; THE FOURTH SCHEDULEARTICLE 4 LETS A REORGANISATION LAW ADJUST BOTH TOGETHER.ORDINARY LAW IS NOT A LESSER CONSTITUTIONAL ACT IN

OPTIONAL DOCTRINE / CASE

- Explanation I is a favourite close-option trap.
- In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature.
- This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.
- The First Schedule and Fourth Schedule do different jobs.

ADVANCED LIMIT

- The First Schedule tracks territorial units; the Fourth Schedule tracks Rajya Sabha seat allocation.
- Article 4 lets a reorganisation law adjust both together.
- Ordinary law is not a lesser constitutional act in this chapter.
- An Article 3 law is ordinary in voting threshold, but constitutional in subject matter.

COMPARATIVE NUANCE

- That is why it can lawfully redraw the map while still remaining outside Article 368.
- Berubari Union (1960) is not just a territorial case.
- It also teaches exam method: identify whether the question is about internal diminution, cession, or interpretive use of
- a case in another topic such as the Preamble.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.